

Social & Philosophical Foundations of Education

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University of California, Davis

Lecture 11: July 29, 2025

Lecture #11: Agenda

➤ Educating Students with Disabilities





Students with Disabilities

- ▶ What types of interactions have you had in schools with students with disabilities?
 - ▶ Were students with disabilities included in general education classes at the schools you attended?
 - ▶ If yes, what types of supports did they access?
 - ▶ Were students with disabilities included in clubs, sports teams, etc. at schools you attended?
- ▶ What types of interactions have you had in the workplace with people with disabilities?



Individuals with Disabilities Education Act (IDEA)

- ▶ Enacted by the federal government to ensure that all children with disabilities are provided with “equality of [educational] opportunity, full participation, independent living, and economic self-sufficiency.”
- ▶ **Originally adopted in 1975** as the Education for All Handicapped Children Act, and amended in 2004.



Individuals with Disabilities Education Act (IDEA)

- ▶ IDEA aims to curb educational problems associated with low expectations and insufficient focus on alternative research, teaching methods, and tools by:
 - ▶ Providing federal money to assist states and local agencies in educating students with disabilities.
 - ▶ Governing how states and public agencies provide early intervention, special education and related services students.

Individuals with Disabilities Education Act (IDEA)

- **In 1975**, America's public schools accommodated only **1 out of 5 children with disabilities**. More than **1 million children with disabilities** had no access to the public school system.
- **Today**, more than **6.5 million** eligible infants, toddlers, children, and youth with disabilities are being served.

What We Know...

- ▶ California serves almost **800,000 SWD** (approximately 11.7 percent of the K-12 population).
 - ▶ The type and proportion of SWD vary considerably by **school, district** and by **grade level**.
- ▶ **Speech or language impairments** (in the early grades) and **specific learning disabilities** (by grades 5 and 6) constitute most identified disabilities.

Source: West Ed: California Special Education Funding Study, 2020

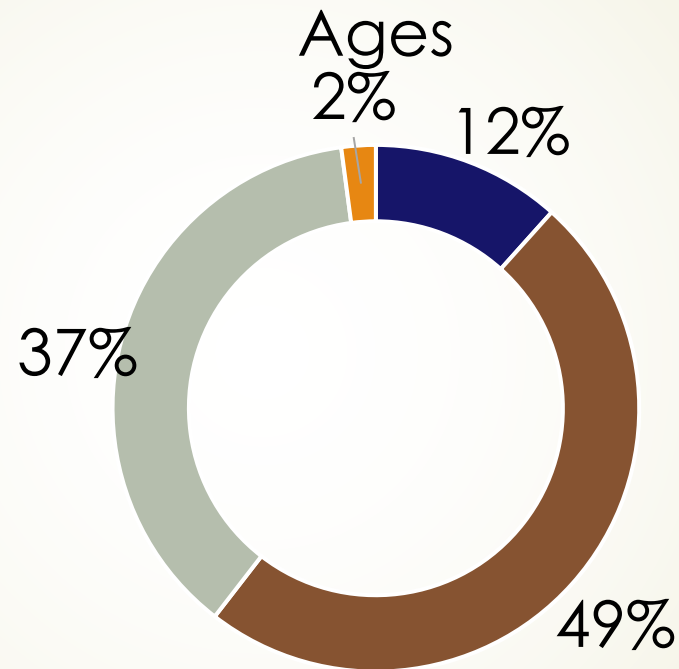


What We Know...

- **Persistent achievement gaps** exist between students with disabilities and their peers without disabilities.
- **Disproportionate identification rates** for special education are found among English learner students and socioeconomically disadvantaged students.

Source: West Ed: California Special Education Funding Study, 2020

Ages of SWD



■ 0 to 5 ■ 6 to 12 ■ 13 to 18 ■ 19+

Source: California Special Education Management Information System (CASEMIS) December 2018



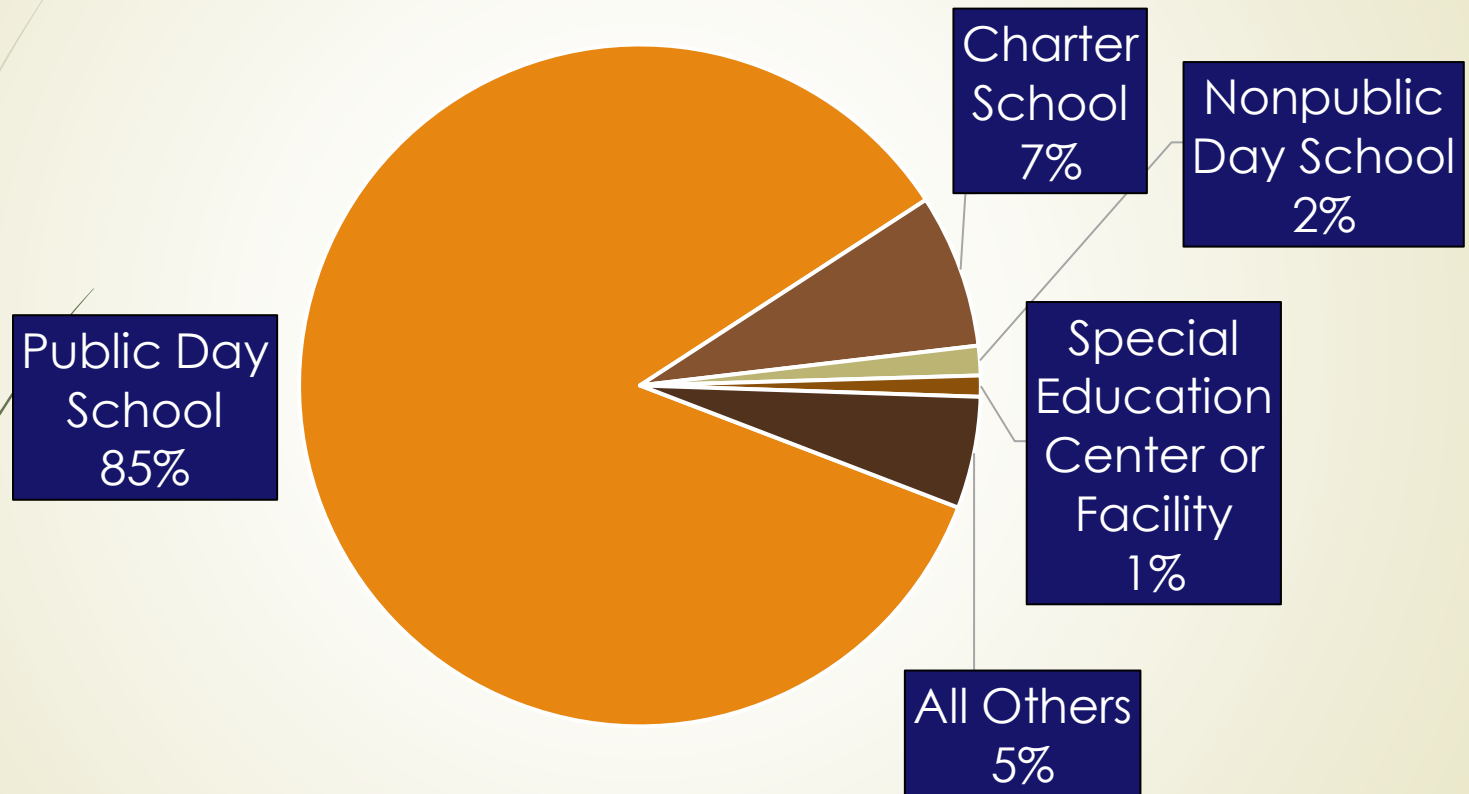
SWD Disability Categories

The top 3 primary disability categories are:

- **Specific Learning Disability** (37.77%)
- **Speech or Language Impairment** (20.71%)
- **Autism** (15.1%)

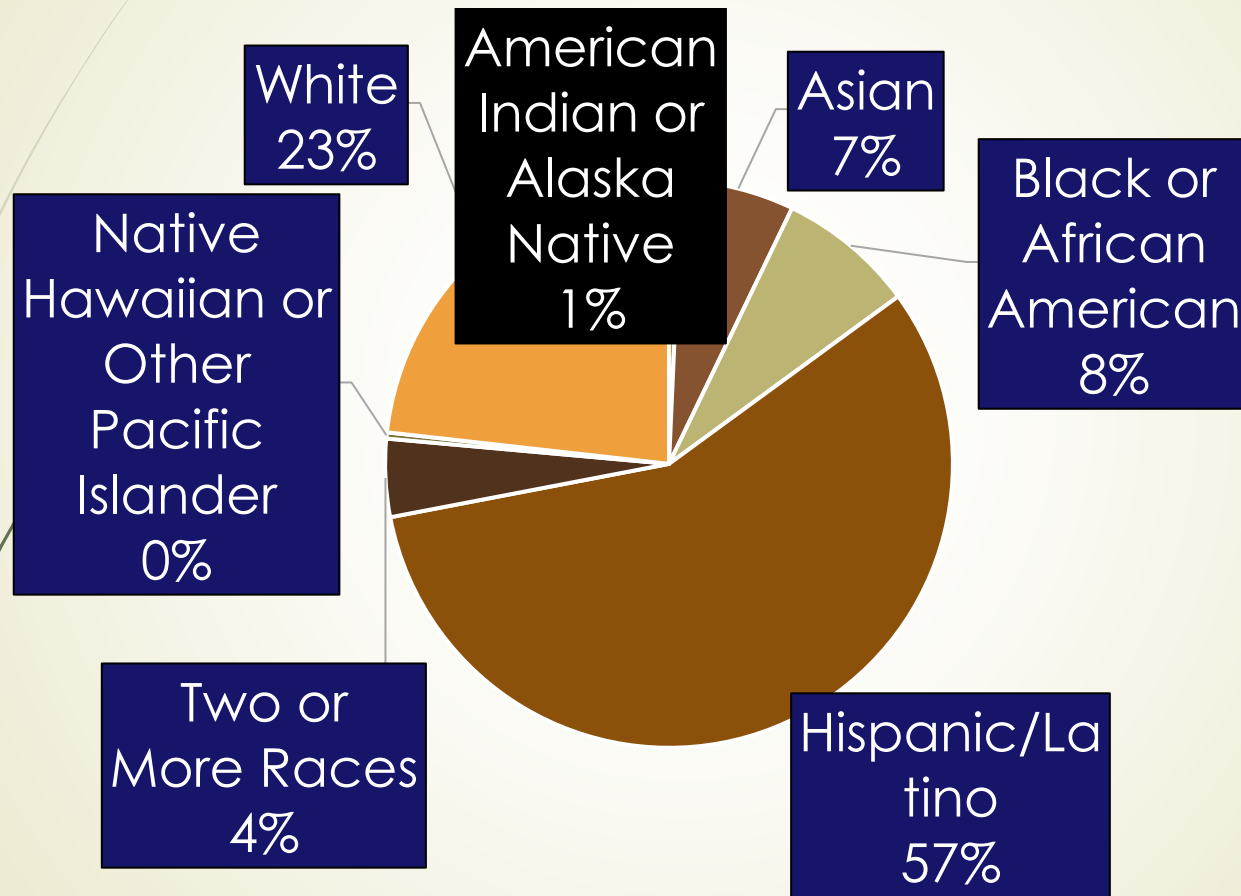
Source: California Special Education Management Information System (CASEMIS) December 2018

Top 5 School Types for SWD



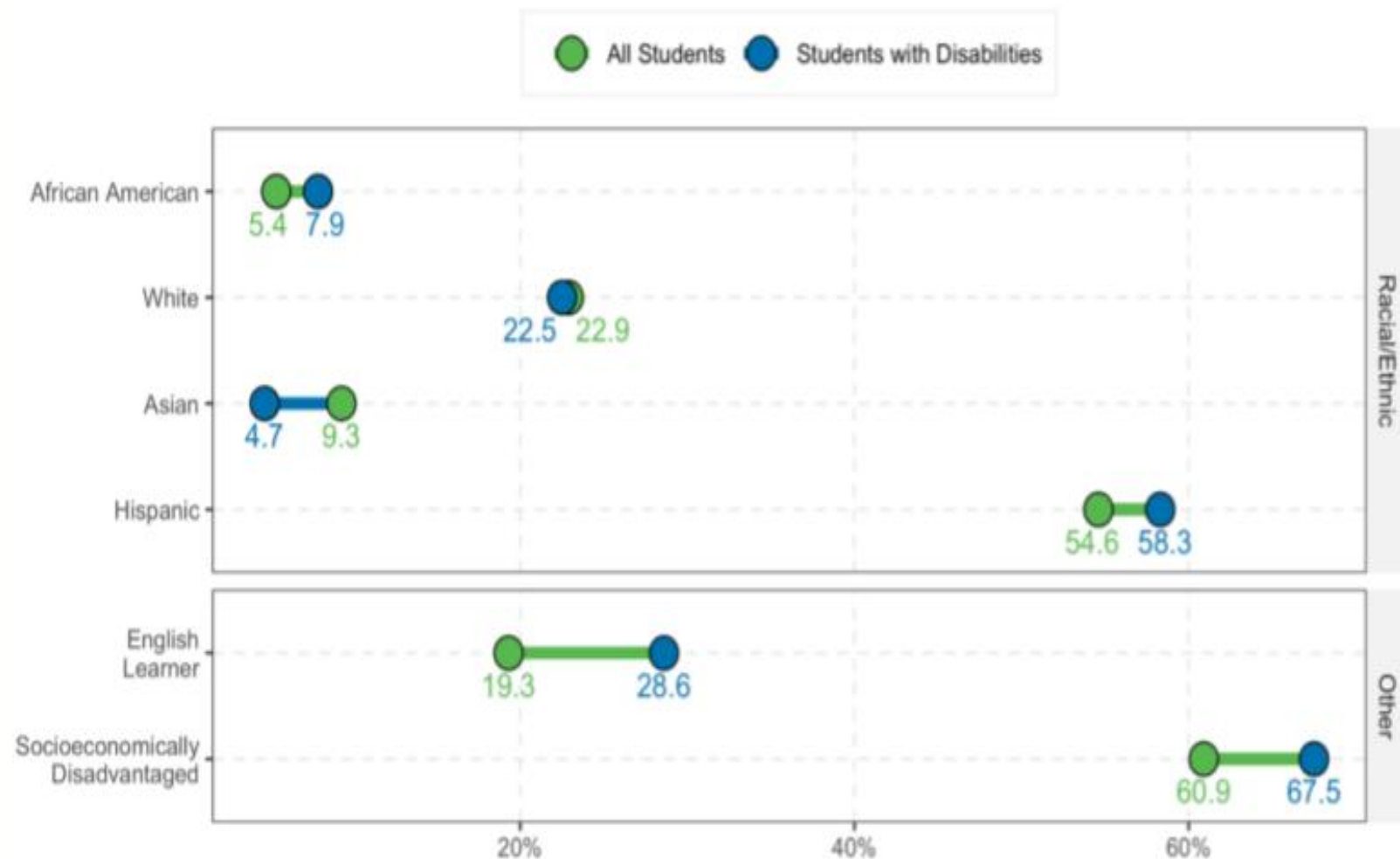
Source: California Special Education Management Information System (CASEMIS) December 2018

SWD by Race & Ethnicity



Source: California Special Education Management Information System (CASEMIS) December 2018

Figure 1. Disproportionate identification of California students with disabilities (Disproportionality), 2018/19 school year



Note. Data from DataQuest Enrollment Data, 2018/19 (CDE, n.d.).

Students with Disabilities in the CORE Districts

Characteristics, Outcomes,
and Transitions

Kevin Gee
Carolynne Beno
Joe Witte



In this brief, we leverage data from eight school districts, known as the CORE districts, to describe students with disabilities (SWD) by their characteristics, outcomes, and transitions into and out of special education. We found that the most common disability type was a specific learning disability. Relative to their representation among students districtwide, males, African Americans, English language learners, and foster youth were more highly represented among SWD. In terms of outcomes, chronic absence was more prevalent among children with multiple disabilities. Entry rates into special education were highest in K-4 while exits were most common in Grades 8-12. These descriptive results shed light on the diversity within the SWD population and highlight who may need targeted supports to address performance challenges.

February 2020



PACE



Study Objectives



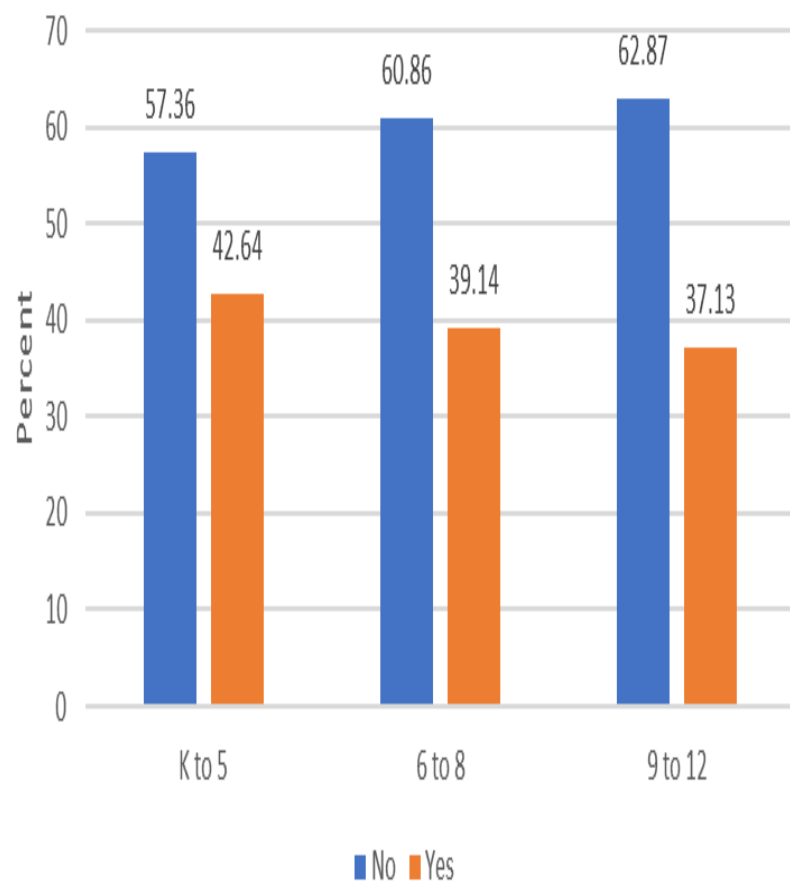
Research Questions

- What are the **demographic attributes** of California's students with disabilities?
- How do students with disabilities **move in and out of special education**, and **change between primary disability categories** over time?
- What are **outcomes** for students with disabilities?

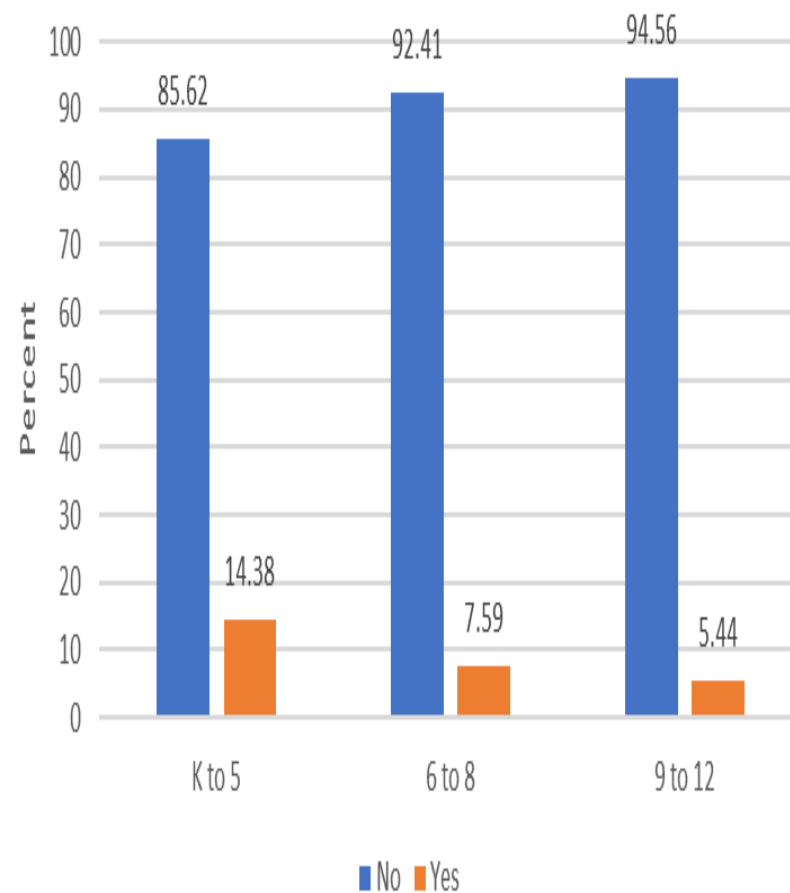
Sample

- Annual data (2014-15 to 2017-18)
- Students in K-12 from the **CORE districts**
 - Fresno
 - Garden Grove
 - Long Beach
 - Los Angeles
 - Oakland
 - Sacramento
 - San Francisco
 - Santa Ana

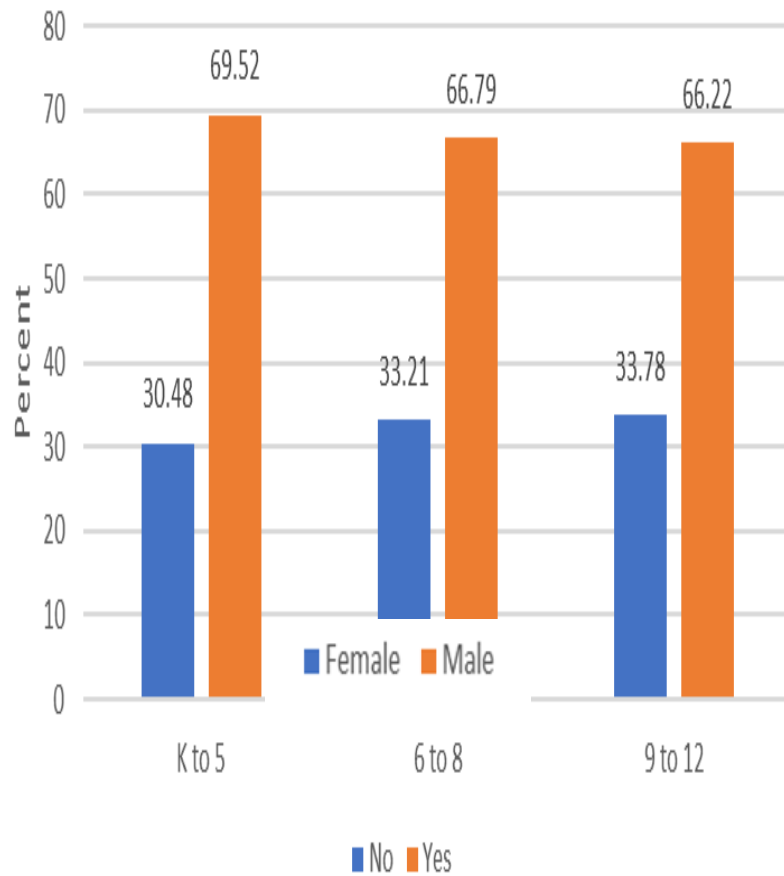
English Language Learner (IEP)



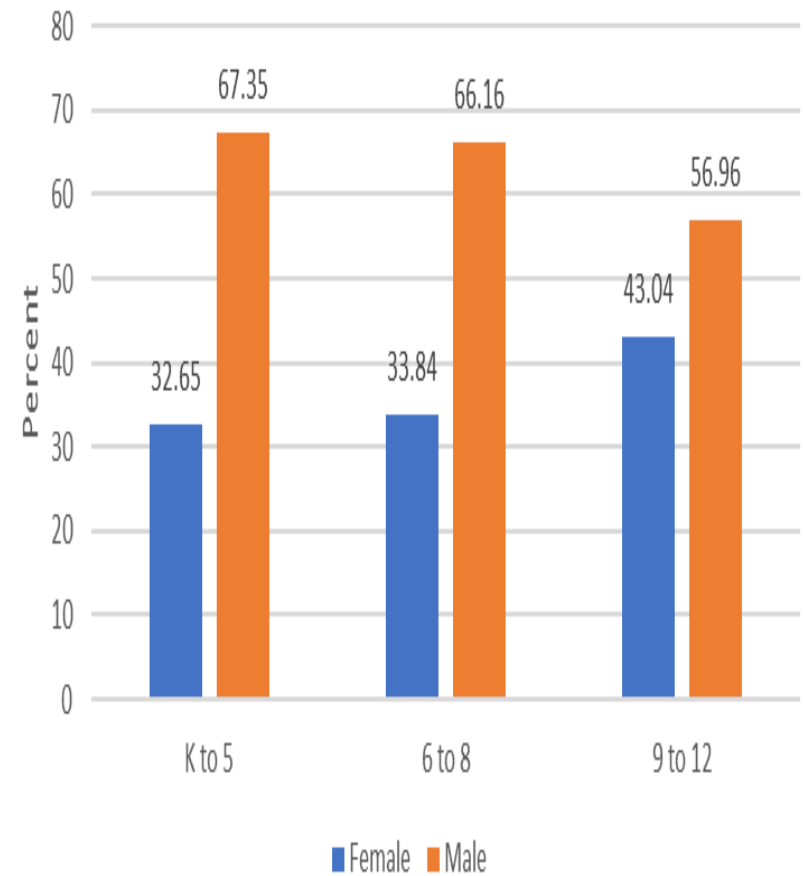
English Language Learner (504)



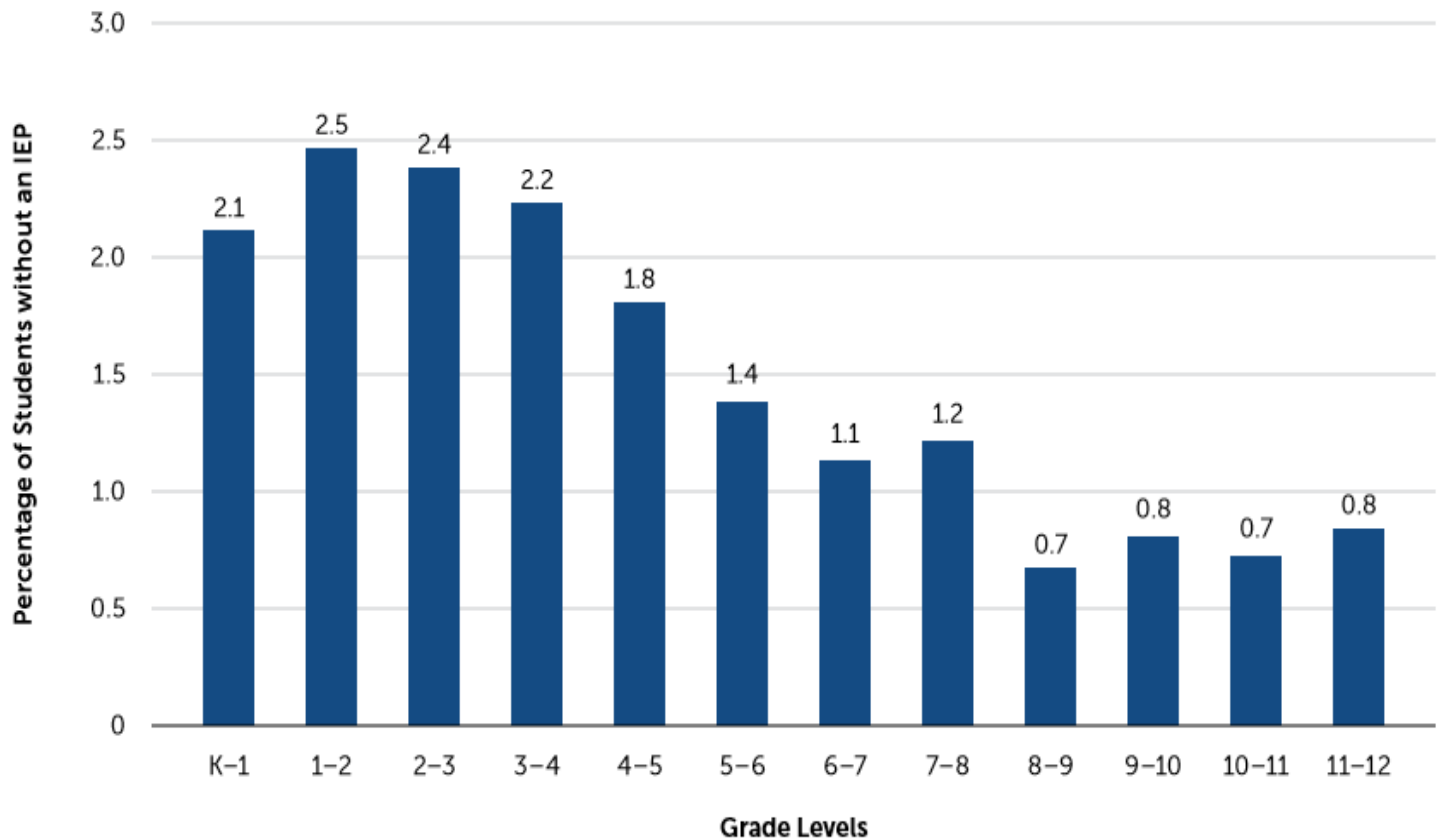
Gender (IEP)



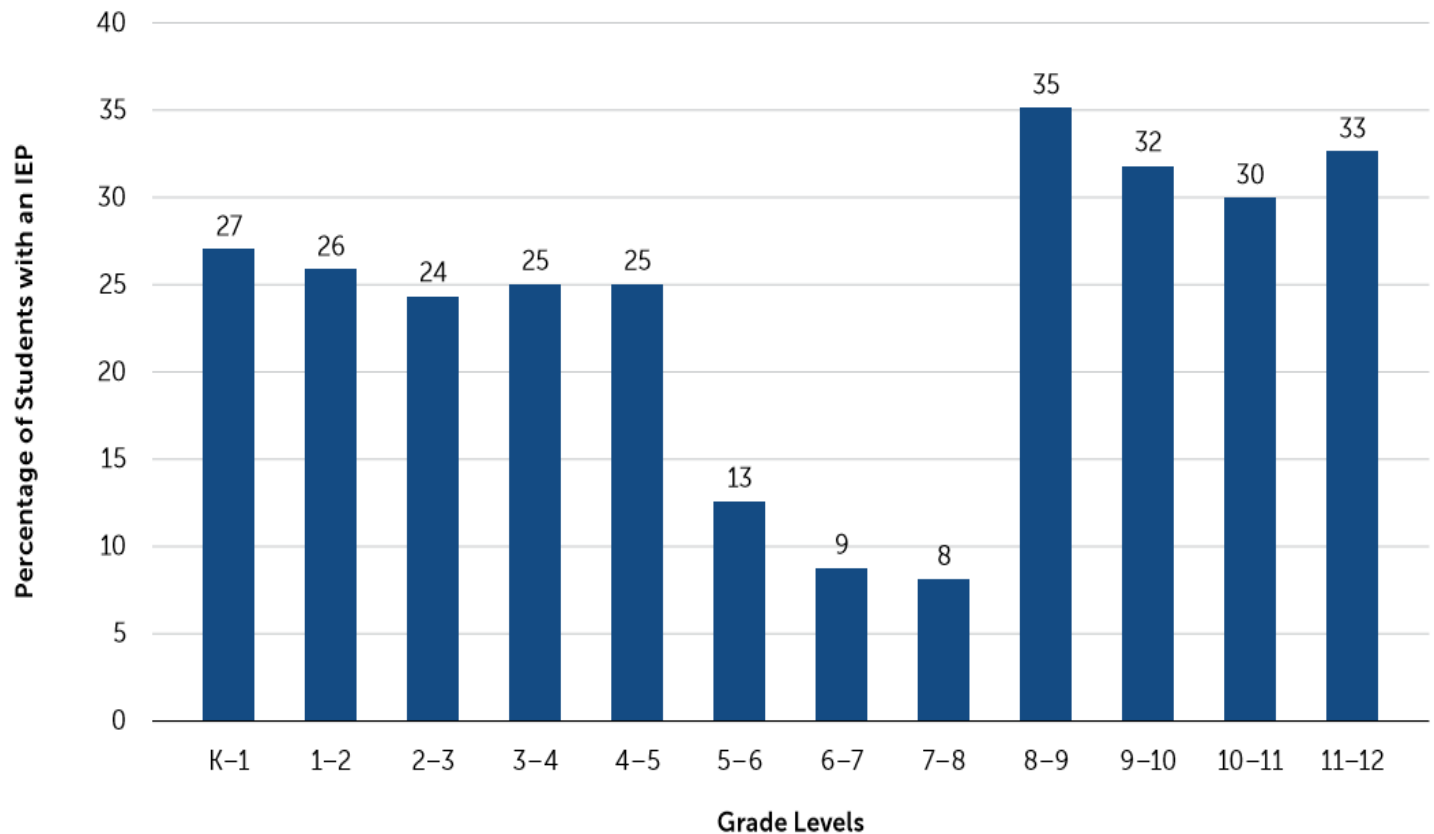
Gender (504)



Percentage of Students Entering Special Education in Grades K–12



Percentage of Students **Exiting Special Education** in Grades K–12



Least Restrictive Environment (LRE)



- ▶ The IDEA places a strong emphasis on placement in a general education setting and a student is guaranteed placement in the LRE if possible.
- ▶ IEP teams must explore a number of alternatives for enabling a student to participate in the general education classroom (i.e., classroom modifications, supplemental aids and services, alternative instructional methods, etc.).



Including Students with Special Needs

- ▶ Students with disabilities in general education classrooms:
 - ▶ Develop stronger neural connections since the learning environment is richer.
 - ▶ Don't experience as much stigma or heightened self-condemnation as when they are excluded.
 - ▶ Add to the classroom diversity.



Including Students with Special Needs

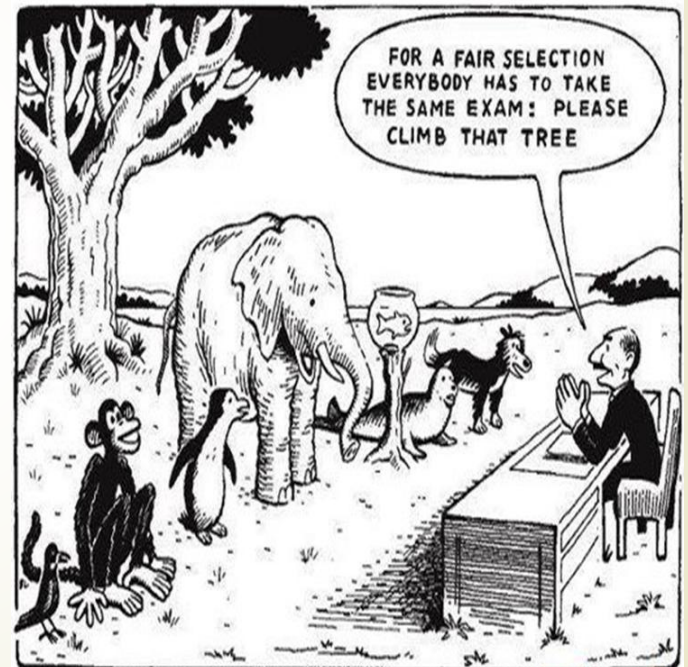
- ▶ Students with disabilities in general education classrooms:
 - ▶ Bring new strengths to the classroom.
 - ▶ Promote a climate of giving and encouraging everyone to pitch in to help each other.
 - ▶ Help teachers be more effective for all learners through learning environments providing varied content representations, engagement strategies, and assessments.

Perspectives on Educating Students with Disabilities

FAIR ISN'T
everybody getting the
same thing.....

FAIR IS
everybody getting
what they need
In order to be
SUCCESSFUL.

EDU120, C. Beard, UC Davis



THE PARENT SIDE[®]™



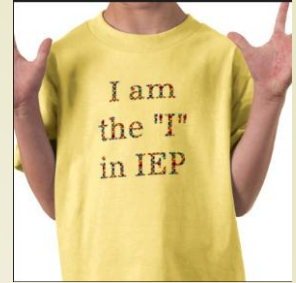
© 2003 Colleen F. Tomko

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Mixed Messages



Individualized Education Program (IEP)



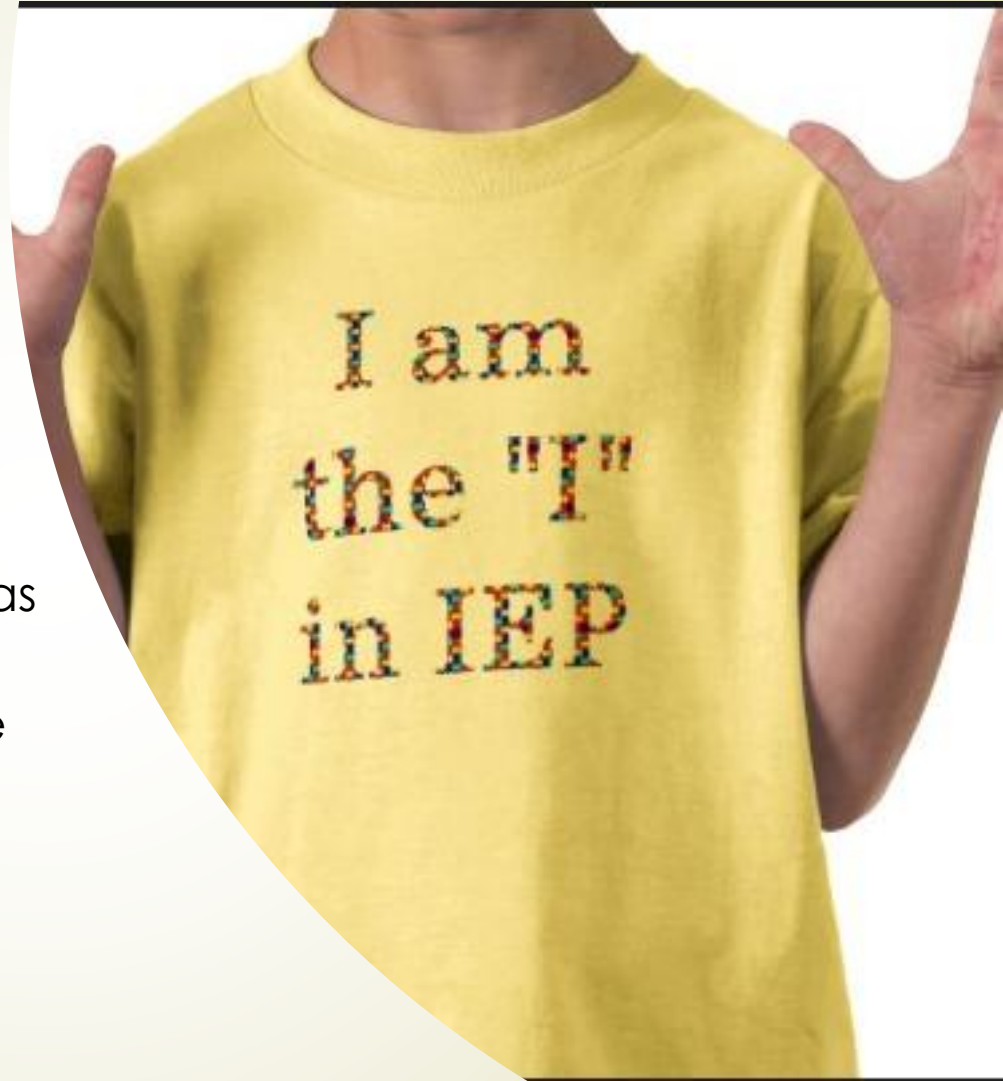
- An **IEP is a written document**, developed by an IEP team, which draws upon existing evaluation information in order to **meet a student's unique educational needs**.

IEPs must include:

- **Present levels** of educational performance.
- Annual **goals**.
- **Services** and supplementary aids to be received.
- Explanation of instances where a student is **not participating in the general education classroom** and why.

Individualized Education Program (IEP)

- ▶ IEPs must also include information regarding consistent reporting on student progress as well as “transition” to adult life.
- ▶ IEPs must account for the **planning concerns of the parents and child**, the **strengths** of a particular child, and the specific **“academic, developmental, and functional needs”** of the child.



Individualized Education Program (IEP)

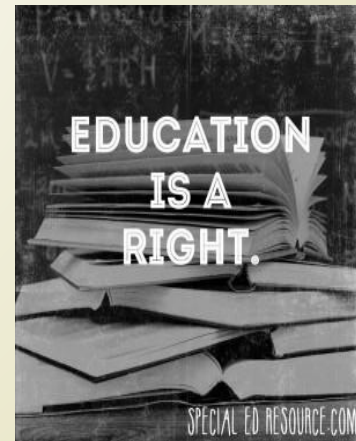


OUTNUMBERED?

Free Appropriate Public Education (FAPE)

- Every child with a disability is entitled to a FAPE. The IDEA identifies special education and related services, which should be designed to meet a child's "unique needs and prepare them for further education, employment, and independent living."
- Courts have held that the IDEA requires schools to prepare Individualized Education Programs (IEPs), which confer "meaningful educational benefit" to children with disabilities.

IEP 120; C. Bender, UC Davis

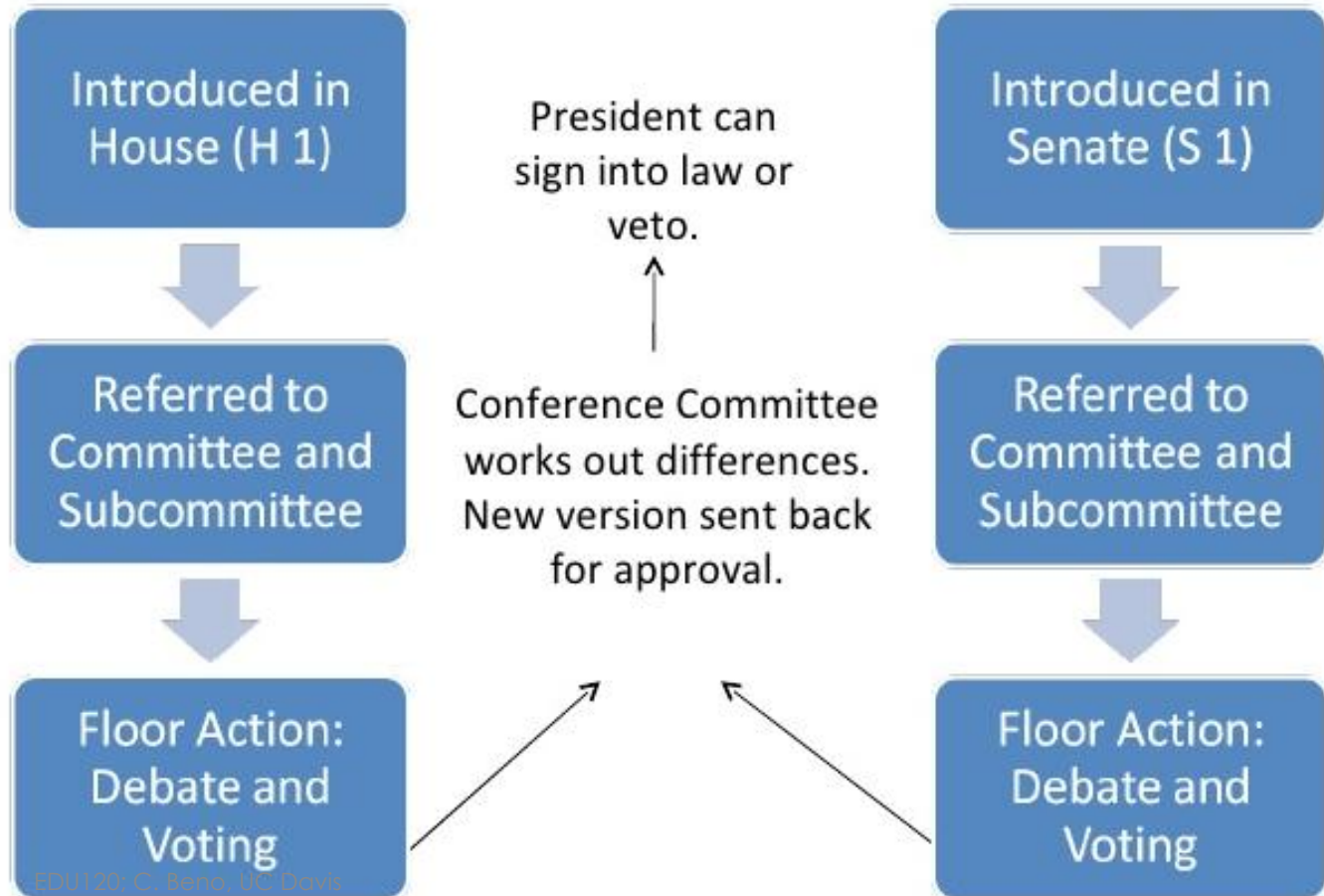


Putting Policy Into Practice: Examining FAPE

How does a district know if a child is receiving a Free ***Appropriate*** Public Education (FAPE)?



How a Bill Becomes a Federal Law

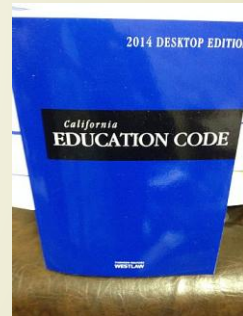


How Federal Laws are Enacted

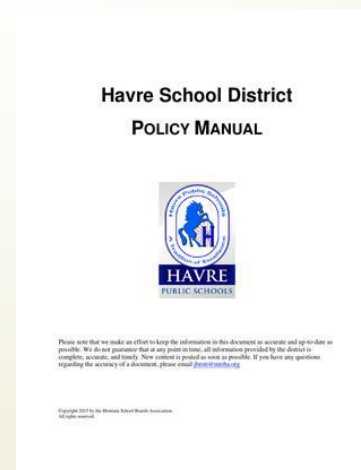
Federal Laws (e.g., the IDEA) inform the...



California Education Code, which frame...



School District Policies



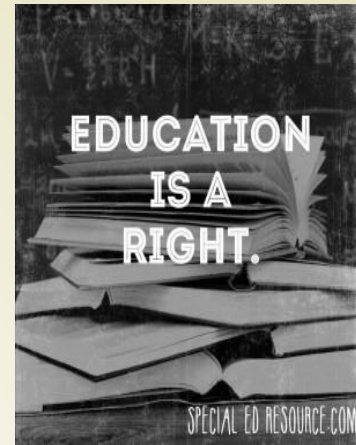
How Laws are Interpreted

- ▶ Article III of the Constitution creates the Judicial branch.
 - ▶ The courts, and the Supreme Court of the United States.
- ▶ The courts are in charge of interpreting and applying the laws to settle legal disputes.



Free Appropriate Public Education (FAPE)

- ➔ ***Courts have held*** that the IDEA requires schools to prepare Individualized Education Programs (IEPs), which confer “meaningful educational benefit” to children with disabilities.



Relevant Legal Authorities

- ▶ A Free **Appropriate** Public Education (FAPE) is defined:
 - ▶ In Statute: the Individuals with Disabilities Education Act (IDEA); and
 - ▶ In case law: *Board of Hendrick Hudson v. Rowley*.

FAPE: Defined By IDEA

- ▶ FAPE's definition in 20 U.S. Code § 1401:
 - ▶ Mandates an appropriate preschool, elementary, or secondary school education...
 - ▶ ...But, does not define “appropriate”.

FAPE: Defined By *Board of Hendrick Hudson v. Rowley*

- ▶ Amy Rowley, a student who was hard of hearing, began Kindergarten in the Hendrick Hudson Central School District in New York.
 - ▶ Amy had minimal residual hearing and was an excellent lip reader.
 - ▶ The District's offer of FAPE provided Amy with an FM hearing aid to amplify the teacher's words.
 - ▶ The District provided a sign-language interpreter for 2 weeks, but it was determined by the interpreter that Amy did not need his services.
 - ▶ Amy successfully completed Kindergarten.

FAPE: Defined By *Board of Hendrick Hudson v. Rowley*

- ▶ Amy began 1st grade and at her IEP meeting, the District made this offer of FAPE:
 - ▶ An FM hearing aid;
 - ▶ 1 hour of daily instruction from a tutor for the deaf; and
 - ▶ 3 hours of weekly speech therapy.

FAPE: Defined By Board of Hendrick Hudson v. Rowley

- ▶ Amy's parents agreed with the offer of FAPE, but requested Amy also be provided a sign-language interpreter in all of her academic classes.
- ▶ The District concluded that Amy did NOT need an interpreter in her 1st grade classroom after consulting with:
 - ▶ The school district's Committee on the Handicapped;
 - ▶ Amy's teacher; and
 - ▶ Others who knew Amy.

FAPE: Defined By *Board of Hendrick Hudson v. Rowley*

- ▶ Amy's parents filed for a Due Process Hearing and claimed the Districts' denial of a sign-language interpreter was a denial of the Free Appropriate Public Education guaranteed under IDEA.
- ▶ The case went to the Supreme Court who determined on June 28, 1982:
 - ▶ Congress had **NOT** intended to impose a "maximizing" standard.
 - ▶ Congress had simply intended to open the door of education to disabled students and Districts were required to provide a "basic floor of opportunity."



What's So Special About Special Education?

John Merrow

- “Not very much” or “not enough”.
 - Phony “inclusion”.
 - A bloated bureaucracy.
 - Questionable classifications.
 - An appalling dropout rate.
 - Near total lack of accountability.

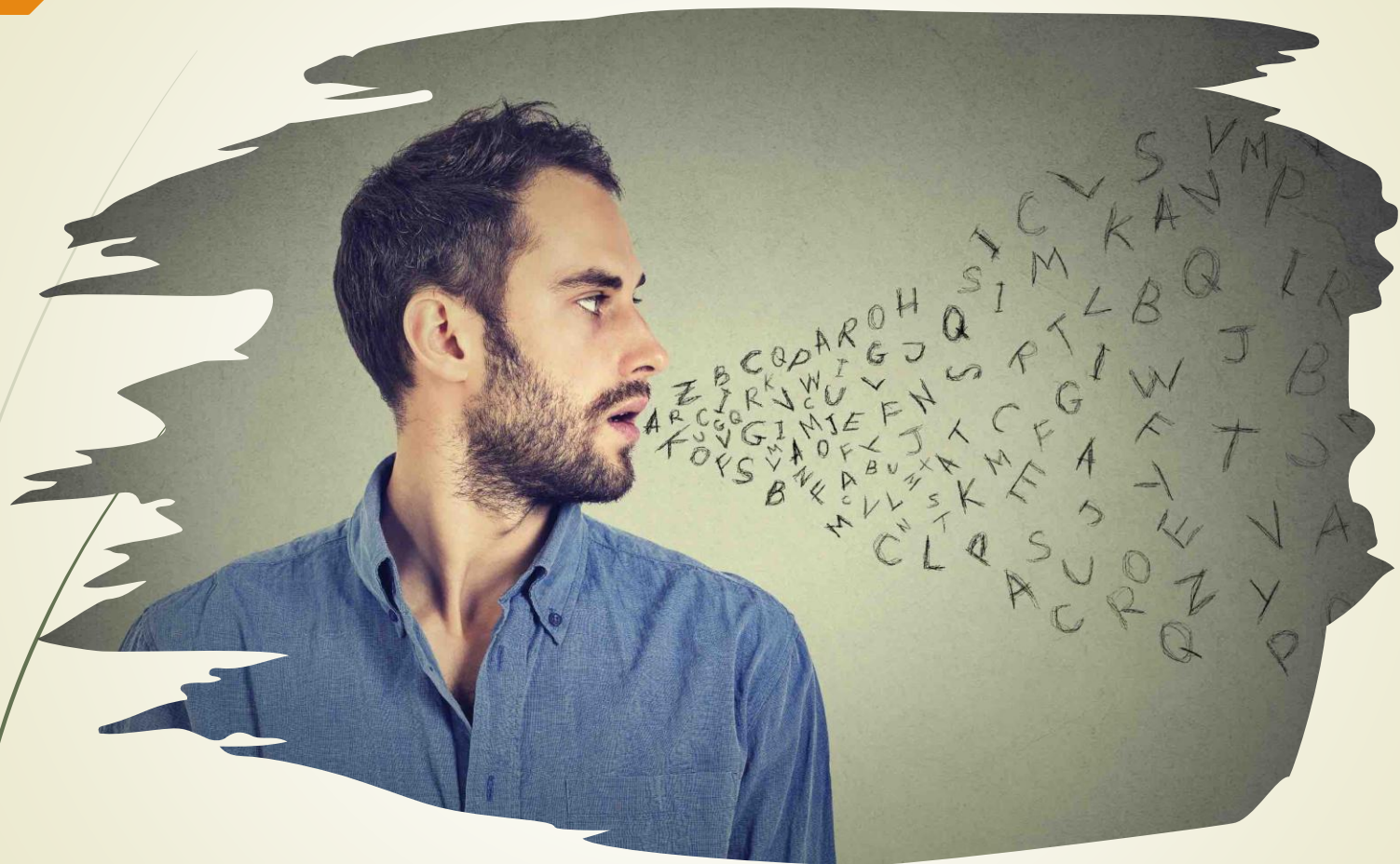
Woodland Joint Unified (Yolo County, CA)

Reporting Year: 2019 ▼

This report displays the performance level (color) for each student group on all the state indicators.

Student Group Report for 2019

Student Group	Chronic Absenteeism	Suspension Rate	Graduation Rate	College/Career	English Language Arts	Mathematics
All Students	Orange	Yellow	Green	Green	Yellow	Orange
English Learners	Yellow	Yellow	Green	Yellow	Yellow	Orange
Foster Youth	Orange	Yellow	None	None	Red	Red
Homeless	Yellow	Orange	Green	Green	Orange	Yellow
Socioeconomically Disadvantaged	Orange	Yellow	Green	Green	Yellow	Orange
Students with Disabilities	Yellow	Red	Green	Yellow	Orange	Orange
African American	Orange	Yellow	None	None	Yellow	Yellow
American Indian or Alaska Native	Orange	Red	None	None	None	None
Asian	Green	Green	Blue	Green	Yellow	Orange
Filipino	Green	Orange	None	None	None	None
Hispanic	Orange	Orange	Green	Green	Yellow	Orange
Native Hawaiian or Pacific Islander	None	Yellow	None	None	None	None
White	Orange	Yellow	Orange	Yellow	Green	Green
Two or More Races	Yellow	Red	None	None	Orange	Orange



Words Matter: Use of People First Language

- ▶ Students with disabilities are sons, daughters, sisters, brothers, friends, and neighbors.
- ▶ The contributions of students with disabilities enrich our communities as they live, learn and share their lives.
- ▶ The language used to refer to students with disabilities has a profound impact in shaping beliefs and attitudes about these students, driving policies and laws, influencing our feelings and decisions, and affecting students' daily lives.

EDU120; C. Beno, UC Davis

PERSON—FIRST Terminology



Words have **impact**.

Choose words to model

acceptance & respect,
especially when an individual
has a disability or special
need.

**Say: A child with
Down Syndrome**

Instead of:
A Down Syndrome child

**Say: Children with
special needs**

Instead of: Special
needs children

Say: A child with autism

Instead of:
An autistic child

A disability or special need is
only one aspect of an indi-
vidual. Use terminology that
acknowledges that he or she
is a person **first**.

Words Matter: Use of People First Language

- Old, inaccurate, and inappropriate descriptors about students with disabilities perpetuate negative stereotypes and attitudinal barriers.
- When we identify or describe students with disabilities primarily in terms of their disability or mental diagnosis, we devalue and stigmatize them, while using thoughtful terminology can foster positive attitudes about students with disabilities.

EDU120; C. Beno, UC Davis

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Words Matter: Updated Terminology

Outdated	Updated
Mentally Retarded	
Handicapped	
Hearing Impaired	
Regular Education	
Wheelchair Bound	

Words Matter

- ▶ “Until we learn to appreciate the power of language and the importance of using it responsibly, we will continue to produce negative social consequences for those victimized by dangerous language habits.”
 - ▶ J. Dan Rothwell, *Telling It Like It Isn't: Language Misuse and Malpractice/What We Can Do About It*



3 Reasons Special Education Finance Matters

1. Students with disabilities have an entitlement under federal law (i.e., the IDEA) to a FAPE.

- This service entitlement in the IDEA supersedes the availability of funding.
- ***Schools must serve students with disabilities before supporting other budgeted programs.***



3 Reasons Special Education Finance Matters

2. Special education is California's largest categorical program in the education budget.

3. Approximately **1 in 10 children** in California's public schools have disabilities and are on an IEP.

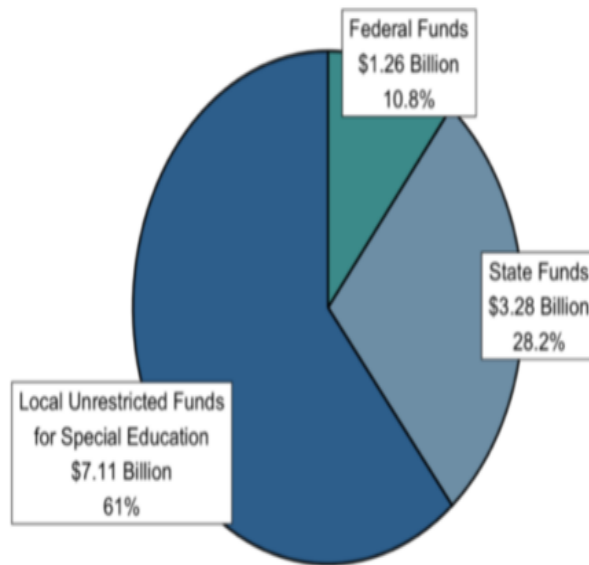


Problem Statement

- Despite the fact that special education funding in California has grown more slowly than general-purpose funds, **special education spending has grown faster** than spending on other programs.
- Budgetary Tension: Special education expenses, related to meeting special education mandates in the IDEA, **“encroach”** on other education funds.

Local Contribution to Special Education

Figure 10. Funding sources for special education in California, 2018/19



Note. CDE Financial Data for the 2018/19 school year. Federal funds are IDEA Part B funds. State funds include AB 602 base funds, AB 602 supplemental funding streams, and other state special education funds. Local unrestricted funds are LEA funds from unrestricted sources used for special education.

- **State and federal categorical funds** help pay for 40% of the costs of special education.
- Schools **cover remaining special education costs with general purpose funding (mostly from LCFF).**